If ‘jurisdiction’ was wrongly created to hang Bhagat Singh, then might there be a case for an official pardon today? In truth, as early as 4 May 1930 Bhagat Singh’s lawyers objected that the special tribunal ‘had no jurisdiction to try the case’. Such protestations fell on stony ground. In her *Despotism of Law*, Radhika Singha explains how penal law from the time of early East India Company rule was used to have an impact on ‘the range of social transactions which shaped the process of colonial state-formation’,[28] whereby it became acceptable in some cases ‘that the judge should use a different and lesser standard to hang a man . . .’.[29] Even if Bhagat Singh’s trial concerned, what a modern case analysing the application of the formula, ‘peace, order and good government’, has said involved the affairs of ‘incontestably the colony’ can it be argued that ‘it is capable of being rendered invalid by jurisdictional error or malpractice’?[30] The question is important because it is only in recent years that there has been an awareness of how in many Commonwealth jurisdictions, the phrase ‘peace, order and good government’ was traditionally used to express the legitimate objects of legislative powers conferred by statute. This has helped raise the possibility of comparative legal insights into how this power was to be exercised. Historically, the phrase has appeared in Imperial Acts of Parliament and Letters Patent. Today, it is to be seen in the constitutions of Canada[31] and the Commonwealth of Australia.[32] It used to be evident in the constitutions of New Zealand and of South Africa. In the years before the Independence of India, the use of a legislative power to make an ordinance on the basis of ‘peace, order and good government’ was regularly used to try, convict and hang those who stood up to the government.

The historian Mark Condos has shown recently how ‘the British in India regularly abandoned their high-minded notions about the “civilising mission”, and reverted to much more brutal and pragmatic measures in order to ensure the stability and security of the colonial regime’,[33] so that although ‘peace, order and good government’ may ordinarily be treated as epitomes of high virtue, they were not infrequently subverted by the colonial state through the medium of the law to maintain control. This is how Bhagat Singh came to be executed. Bhagat Singh and his comrades